

26CHCV01144 26CHCV01144

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-07-21

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Case Number: 26CHCV01144 Hearing Date: July 21, 2026 Dept: F46

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(1) PETITIONER'S AMENDED MOTION TO COMPEL RESPONDENT'S RESPONSES TO FORM INTERROGATORIES, SET ONE;

(2) PETITIONER'S MOTION TO COMPEL RESPONDENT'S RESPONSES TO SPECIAL INTERROGATORIES, SET ONE;

(3) PETITIONER'S MOTION TO COMPEL RESPONDENT'S RESPONSES TO DEMAND FOR INSPECTION AND PRODUCTION OF DOCUMENTS, SET ONE;

(4) PETITIONER'S MOTION FOR ORDER DEEMING REQUESTS FOR ADMISSION, SET ONE, ADMITTED.

Motions filed on: June 11 and 12, 2026.

MOVING PARTY: Petitioner Christina Phillips.

RESPONDING PARTY: Respondent Horace Mann Insurance Company.

NOTICE: OK as to the discovery relief. Defective as to monetary sanctions.

RELIEF REQUESTED: Orders compelling responses to form interrogatories, special interrogatories, and demand for inspection and production of documents. Order

deeming requests for admission admitted. Monetary sanctions totaling \$5,400.00 (\$1,350.00 per motion).

RULING: Granted in part. Sanctions denied.

BACKGROUND

On March 20, 2026, Petitioner Christina Phillips (Petitioner) filed a petition against Horace Mann Insurance Company (Respondent).

On June 5, 2026, Petitioner filed a motion to compel responses to Form Interrogatories, Set One. On June 11, 2026, Petitioner filed the operative amended motion. On June 12, 2026, Petitioner filed motions to compel responses to Special Interrogatories, Set One, and Demand for Inspection and Production of Documents, Set One, and a motion to deem Requests for Admission, Set One, admitted.

On June 29, 2026, Respondent filed oppositions to all four motions.

On July 9, 2026, Petitioner filed replies to all four oppositions.

DISCUSSION

Form Interrogatories, Set One, Special Interrogatories, Set One, and Demand for Inspection and Production of Documents, Set One

If a party to whom interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling response. (Code Civ. Proc., § 2030.290, subd. (b).) The failure to serve a timely response waives any objection to the interrogatories, including objections based on privilege and work product. (Code Civ. Proc., § 2030.290, subd. (a).) If a party to whom a demand for inspection is directed fails to serve a timely response, the demanding party may move for an order compelling response. (Code Civ. Proc., § 2031.300, subd. (b).) The failure to serve a timely response waives all objections to the demand, including objections based on privilege and work product. (Code Civ. Proc., § 2031.300,

subd. (a).)

Here, Petitioner served Respondent with Form Interrogatories, Set One, Special Interrogatories, Set One, and Demand for Inspection and Production of Documents, Set One, on September 26, 2025. Responses were due October 29, 2025. Petitioner granted Respondent an extension through November 10, 2025. Respondent did not serve responses by that deadline. Petitioner sent follow-up correspondence concerning the overdue responses on November 20 and December 8, 2025. (Gorin Decl. [FROGs] ¶¶ 3-8, Exs. B-F; Gorin Decl. [SPROGs] ¶¶ 3-8, Exs. B-F; Gorin Decl. [RPD] ¶¶ 3-8, Exs. B-F.)

In opposition, Respondent argues that Petitioner did not establish service because the moving papers did not include a proof of service on the above requests. In reply, Petitioner submitted proofs of electronic service. The Court finds the requests for extensions and subsequent service of responses to the same discovery establish receipt. (Replies [FROGs, SPROGs, RPD] Exs. A-B.)

In opposition, Respondent notes it served verified responses to Form Interrogatories, Set One, and Demand for Inspection and Production of Documents, Set One, on June 15, 2026. (Goldstein Decls. [FROGs, RPD] ¶ 5, Ex. A.) Respondent served verified responses to Special Interrogatories, Set One, on June 18, 2026. (Goldstein Decl. [SPROGs] ¶ 5, Ex. A.)

Each set of responses, however, contains a preliminary statement purporting to preserve objections, including attorney-client privilege and work product, and incorporates that statement into the responses. The responses to the production demand also withhold documents based on privilege, confidentiality, and the asserted internal nature of the requested materials. (Goldstein Decls. [FROGs, SPROGs, RPD] ¶ 5, Ex. A.)

Because Respondent failed to serve timely responses, those objections were waived. Respondent must serve verified responses, without objections, in place of the responses previously served, and produce all responsive documents.

Petitioner's motions to compel responses to Form Interrogatories, Set One, Special Interrogatories, Set One, and Demand for

Inspection and Production of Documents, Set One, are GRANTED in part. Respondent is ordered to serve verified responses, without objections, in place of the responses previously served within 20 days.

Requests for Admission, Set One

If a party to whom requests for admission are directed fails to serve a timely response, that party waives any objection to the requests, including objections based on privilege and work product. (Code Civ. Proc., § 2033.280, subd. (a).) The requesting party may move for an order that the truth of the matters specified in the requests be deemed admitted. (Code Civ. Proc., § 2033.280, subd. (b).) The court shall make that order unless it finds that, before the hearing, the responding party served responses in substantial compliance with Section 2033.220. (Code Civ. Proc., § 2033.280, subd. (c).)

Here, Petitioner served Respondent with Requests for Admission, Set One, on September 26, 2025. Responses were due October 29, 2025. Petitioner granted Respondent an extension through November 10, 2025. Respondent did not serve responses by that deadline. Petitioner sent follow-up correspondence concerning the overdue responses on November 20 and December 8, 2025. (Gorin Decl. [RFA] ¶¶ 3-8, Exs. B-F.)

In opposition, Respondent argues that Petitioner did not establish service because the moving papers did not include a proof of service on the requests. In reply, Petitioner submitted a proof of electronic service. The Court finds Respondent's requests for extensions and subsequent service of responses to the same discovery establish receipt. (Reply [RFA] Exs. A-B.)

In opposition, Respondent notes it served verified responses to Requests for Admission, Set One, on June 15, 2026. (Goldstein Decl. [RFA] ¶ 5, Ex. A.) Respondent admitted, denied, or stated an inability to admit or deny each request. The responses substantially comply with Section 2033.220 and were served before the hearing.

Petitioner's motion for an order deeming Requests for Admission, Set One, admitted is DENIED as moot.

Sanctions

The court shall impose a monetary sanction against any

party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories or inspection demands unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., §§ 2030.290, subd. (c), 2031.300, subd. (c).) For requests for admission, it is mandatory that the court impose a monetary sanction under Chapter 7, commencing with Section 2023.010, on the party or attorney, or both, whose failure to serve a timely response necessitated the motion. (Code Civ. Proc., § 2033.280, subd. (c).)

A request for sanctions shall identify in the notice of motion every person, party, and attorney against whom sanctions are sought and specify the type of sanction sought. (Code Civ. Proc., § 2023.040.)

Here, the captions of the motions concerning Form Interrogatories, Special Interrogatories, and the Demand For Production of Documents reference a request for sanctions, but the notices themselves do not request sanctions, specify the type of sanction sought, or identify the party or attorney against whom sanctions are sought. (Not. Mot. [FROGs] at 1-2; Not. Mot. [SPROGs] at 1-2; Not. Mot. [RPD] at 1-2.) The notice concerning Requests for Admission expressly requests monetary sanctions but does not identify the party or attorney against whom sanctions are sought. (Not. Mot. [RFA] at 1-2.) Although the memoranda later request \$1,350.00 against Respondent and its counsel, the notices do not satisfy Section 2023.040. Although sanctions on the motion concerning Requests for Admission would otherwise be mandatory under Section 2033.280, subdivision (c), that request remains subject to Section 2023.040.

The supporting declarations also contain internally inconsistent descriptions of the amounts requested. Each declaration states that counsel spent “approximately two (1.5) hours” preparing the motion, anticipates “another one (1.5) hour” to prepare for and appear at the hearing, and claims “a total of six (3.0) hours.” Under either description of the component time, the total is 3.0 hours, which at the stated rate of \$450.00 equals the requested \$1,350.00 in attorney’s fees. The reference to six hours conflicts with both the component figures and the amount requested. Each declaration also separately identifies a \$40.00 filing fee and a \$20.00 fax-filing fee without stating whether those costs are included in or sought in addition to the \$1,350.00. (Gorin Decl. [FROGs] ¶ 9; Gorin Decl. [SPROGs] ¶ 9; Gorin Decl. [RPD] ¶ 9; Gorin Decl. [RFA] ¶ 9.)

The defective notices and internally inconsistent declarations do not support an award. Petitioner's requests for monetary sanctions on all four motions are DENIED.

CONCLUSION

Petitioner's Amended Motion to Compel Respondent's Responses to Form Interrogatories, Set One, is GRANTED in part. Respondent is ordered to serve amended verified responses, without objections, within 20 days.

Petitioner's Motion to Compel Respondent's Responses to Special Interrogatories, Set One, is GRANTED in part. Respondent is ordered to serve amended verified responses, without objections, within 20 days.

Petitioner's Motion to Compel Respondent's Responses to Demand for Inspection and Production of Documents, Set One, is GRANTED in part. Respondent is ordered to serve amended verified responses, without objections, within 20 days.

Petitioner's Motion for Order Deeming Requests for Admission, Set One, Admitted is DENIED as moot.

Petitioner's requests for monetary sanctions on all four motions are DENIED.